

24CHCV03204 24CHCV03204

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Case Number: 24CHCV03204 Hearing Date: September 3, 2026 Dept: F49

Dept. F49

Date: 9/3/26

Case Name: Michael R. Shaar, Trustee of the Michael R.

Shaar Separate Property Trust vs. Rocio A. Flamenco; Mathew Flamenco; and

Does 1-3

Case No. 24CHCV03204

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 3, 2026

MOTION TO COMPEL

RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV03204

Motion filed: 3/27/26

MOVING PARTY: Plaintiff Michael R. Shaar, Trustee of
the Michael R. Shaar Separate Property Trust

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant Rocio A. Flamenco to respond to Plaintiff's Request for Production of Documents to Defendant, Rocio A. Flamenco, Set One; and awarding monetary sanctions in the amount of \$320.00.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from a landlord-tenant dispute. On September 5, 2024, Plaintiff Michael R. Shaar, Trustee of the Michael R. Shaar Separate Property Trust, ("Plaintiff" or "Shaar") filed the Complaint against Defendants Rocio A. Flamenco ("Rocio"), Matthew Flamenco ("Matthew"), and Does 1 through 50, alleging two causes of action: (1) Breach of Lease & Damages pursuant to Civil Code, and (2) Common Counts. Subsequently, Rocio filed her Answer to the Complaint on October 3, 2024.

On October 3, 2024, Rocio filed a Cross-Complaint in pro per against Plaintiff, alleging breach of contract and common counts. On January 9, 2025, the Court granted Plaintiff's special motion to strike the Cross-Complaint. The Cross-Complaint was subsequently dismissed on January 10, 2026.

On March 27, 2026, Plaintiff filed the instant motion to compel Rocio to respond to Plaintiff's Request for Production of Documents to Defendant, Rocio A. Flamenco, Set One (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

A.

Motion to Compel

“A defendant may make a demand for inspection, copying, testing, or sampling without leave of court at any time.” (Code Civ. Proc. § 2031.020, subd. (a).) “Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand,” unless otherwise ordered by the court. (Code Civ. Proc. § 2031.260, subd. (a).)

If a party fails to serve timely responses to a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed waives any objection to the demand, “including one based on privilege or on the protection for work product.” (Code Civ. Proc. § 2031.300, subds. (a).) The Court may, on motion, relieve a party of the waiver of objection if the party subsequently serves a response that substantially complies with the statutory requirements and the failure to serve a timely response “was the result of mistake, inadvertence, or excusable neglect.” (Ibid.)

Plaintiff’s counsel attests that Plaintiff served his Request for Production of Documents, Set One on Rocio on February 11, 2026 via express mail at her address of record. (Zakari Decl., ¶ 4.) The requests are attached to the declaration of Plaintiff’s counsel, and the proof of service confirms that they were served by express mail on February 11, 2026. (Id., Exh. A.) Responses were accordingly due on March 17, 2026. (Code Civ. Proc., §§ 1013, 2030.260.) Plaintiff’s counsel attests that, as of the filing of the Motion, his office had received neither responses to the requests nor any communication from Rocio requesting an extension of time to respond. (Zakari Decl., ¶ 5.)

Based on the foregoing, the Court finds that Rocio has failed to serve timely responses to the requests, thereby waiving any objections.

Rocio has not opposed the Motion or moved separately for relief from the waiver of objection. Further, there is no indication that Rocio has subsequently served substantially compliant responses prior to the hearing on the Motion.

The Court accordingly GRANTS the Motion.

B.

Monetary Sanctions

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300(c)). Further, the Court may award sanctions “in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed[] ... or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

Plaintiff

requests monetary sanctions against Rocio in the amount of \$320.00, calculated as 0.4 hours spent preparing the Motion, at an hourly rate of \$650.00, plus \$60 in filing fees. (Zakari Decl., ¶ 6.)

Given that

Rocio has not served responses to the requests or filed an opposition providing good cause for non-response, the Court finds sanctions appropriate. The Court finds the time expended on the Motion to be reasonable. However, Plaintiff’s counsel provides no facts justifying the hourly rate of \$650. The Court accordingly finds the rate to be unreasonable and exercises its discretion to reduce the rate to \$300 per hour based on the Court’s knowledge of prevailing rates for matters of this type and complexity. The Court finds the total and reasonable attorney fees and costs in connection with preparation of the Motion to be \$180, calculated as 0.4 hours at a rate of \$300, plus the \$60 filing fee.

Plaintiff’s

request for monetary sanctions is thus GRANTED IN PART.

CONCLUSION

The Court GRANTS Plaintiff’s motion. Defendant Rocio

A. Flamenco is ordered to serve verified responses, without objections, to Plaintiff’s Request for Production of Documents to Defendant, Rocio A. Flamenco, Set One within 30 days.

The

request for sanctions is GRANTED IN PART. Defendant

Rocio A. Flamenco is ordered to pay \$180.00 to Plaintiff's counsel within 30 days.

Moving party to give notice.